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प्राप्ति अ. १३  
 दिनांक १  
 प्रमाण द्वारा जारी किया गया है।  
 दिनांक १३/०४/२००४  
 प्रमाण द्वारा जारी किया गया है।  
 दिनांक १३/०४/२००४

प. नं. रावबेकर

PARTNERSHIP DEED

THIS DEED OF PARTNERSHIP made and entered into Mumbai this 1st day of April, 2004 between

- (1) SHRI HEMRAJANI JAWAHAR HARIRAM, a hindu inhabitant, hereafter referred as the Party of the FIRST part,
- (2) SHRI CHOUDHARY KAMLESH ARJUN, a hindu inhabitant, hereafter referred as the Party of the SECOND part,
- (3) SHRI DAVE KAILASH REWASHANKAR, a hindu inhabitant, hereafter referred to as the Party of the THIRD part,

AND WHEREAS the party of the FIRST and SECOND parts mentioned herein above were carrying on the business of structural glazing and cladding or any other business as agreed by the Partners from time to time with effect from 19th day of July, 2003 in the firm name and style of M/s. GLASS WALL SYSTEMS on terms and conditions as per the Partnership Deed dated 19th day of July, 2003 having registered office at 708, Gateway Plaza, Hiranandani Complex, Powai, Mumbai - 400 076;

AND WHEREAS due to exigencies of the business, and the party of the THIRD part already associated with firm since its formation, the Party of the THIRD part has expressed his desire to join the business of the partnership with the terms and conditions expressed in more detail as hereafter;



Accordingly the Party of the FIRST part and Party of the SECOND part have mutually agreed to admit the Party of the THIRD part hereto to the business of the Partnership as partner with effect from 1st day of April, 2004.

AND WHEREAS the Parties hereto are desirous of recording the said terms and conditions.

**NOW THIS DEED OF PARTNERSHIP IS WITNESSETH AS UNDER.**

**1. NAME :**

The partnership business and all its affairs shall be continued to be carried on in the firm and style of **M/S. GLASS WALL SYSTEMS** and/or any other name/s as the parties may mutually agree upon from time to time.

**2. PLACE :**

The principal place of the said partnership business shall be at 708, Gateway Plaza, Hiranandani Complex, Powai, Mumbai - 400 076. and/or any other place/s as the parties may agree upon from time to time.

**3. COMMENCEMENT :**

The parties hereto declare that the partnership hereby re-constituted has come into force with effect from **1.4.2004**

**4. DURATION :**

The duration of the said partnership shall be **"AT WILL"**.

**5. OBJECT AND BUSINESS :**

The business of the partnership shall be that of structural glazing and cladding and any other activity of similar or allied nature or any other business as partners may hereinafter mutually agree upon.

**6. CAPITAL :**

i) Core capital of the firm shall be contributed as under :

It is hereby agreed that the parties hereto shall contribute capital for the partnership business as under :

|                                |                     |
|--------------------------------|---------------------|
| SHRI HEMRAJANI JAWAHAR HARIRAM | Rs. 5,000           |
| SHRI CHOUDHARY KAMLESH ARJUN   | Rs. 5,000           |
| SHRI DAVE KAILASH REWASHANKAR  | Rs. 5,000           |
| TOTAL                          | Rs. 15,000<br>===== |

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*Hemrajani*

*Kamlesh*

*[Signature]*



ii) The necessary capital as well as further funds required for the purpose of the partnership business shall be contributed or arranged by the partners in such manner as may be mutually agreed upon by and between the partners from time to time. Interest at the rate of 18% p.a. simple interest or such lower/higher rate as may be prescribed u/s 40(b)(iv) of the Income Tax Act 1961, or any other applicable provisions as may be in force for the Income Tax Assessment of the Partnership firm for the relevant accounting period shall be payable by the partnership on the amount standing to the credit of the capital and/or current or loan account or the accounts of the partners. Such interest shall be accrued and due at the close of the accounting year i.e. last day of the accounting year. The partners shall be at liberty to increase or reduce the above rate of interest from time to time. Partners may decide not to charge any interest on such loan/s or current or capital account/s.

iii) The partnership firm may also borrow from time to time, from persons, firms, companies or banks such money, as may be required for the purpose of the business, as deposits or loans at an agreed rate of interest.

iv) The maximum rate of interest payable on partners capital specified above shall be deemed to have been changed from year to year in terms of the provisions of section 40(b) which may be amended from year to year. All such changes in terms of the amendments in section 40(b) of the Income Tax Act shall be deemed to have been authorised by this Partnership Deed.

#### 7. SALARIES/REMUNERATION TO PARTNERS :

It is also agreed that only in the accounting years in which there are profits after providing for interest on the capital of the partners as aforesaid, the following partners who are "working partners" shall be entitled to salaries/remuneration calculated as hereinafter specified.

##### i) Working Partners :

- a) HEMRAJANI JAWAHAR HARIRAM
- b) CHOUDHARY KAMLESH ARJUN
- c) DAVE KAILASH REWASHANKAR

ii) Total salaries/remuneration payable to the abovesaid working partners shall be worked out as under subject to maximum of Rs. 9,00,000/-

a) In case of loss

NIL

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*Hemrajani*

*Kamlesh*

*Dave*



(4)

- b) In case of book profit upto Rs.50,000/- upto the amount of book profit.
- c) In case of book profit between Rs.50,000/- & Rs.75,000/-for the year Rs.50,000/-or at the rate of 90% of the book profit whichever is more
- d) On the amount of further book profit exceeding Rs.75,000/-but not exceeding Rs.1,50,000/-for the year. 60% of the excess over Rs.75,000/-
- e) On the bal. book profit exceeding Rs.1,50,000/-for the year. 40% of the excess over Rs.1,50,000/-

Explanation :

For the purpose of this clause the expression 'Book Profit' shall mean the "Book Profits as defined in S.40(b) of I.T. Act, 1961 or any statutory modification or re-enactment thereof, for the time being in force."

- a) Such total remuneration shall be paid to the working partners in the following proportion that is to say
- |                                   |   |       |
|-----------------------------------|---|-------|
| a) SHRI HEMRAJANI JAWAHAR HARIRAM | - | 1/3rd |
| b) SHRI CHOUDHARY KAMLESH ARJUN   | - | 1/3rd |
| c) SHRI DAVE KAILASH REWASHANKAR  | - | 1/3rd |
- b) The remuneration payable to the working partner as above shall be accrued and due on the last day of the accounting year and be credited to their respective accounts on ascertainment of book profits.
- c) The partners shall be entitled to increase or reduce the above remuneration and may agree to pay remuneration to other partner or partners, if any. The parties hereto may also agree to revise the mode of calculating the above remuneration and decide to pay salary and grant the benefit of house rent allowance, rent free quarters, motor car or conveyance allowance, medical expenses, accident and/or life insurance policy premium, provident fund, gratuity, bonus, commission on sales/gross receipts and/or other benefits to the above and/or the other partner or partners either on monthly or yearly basis as they may mutually agree upon.

Contd/-... Pg. No. 5

*Munewar*

*Kamlesh*

*bl*



d) The partners shall be entitled to withdraw any amount during the year from the partnership towards their yearly remuneration, share of profit or out of their current loan or capital account from time to time as may be decided by the partners by mutual consent.

iii) The partners shall be entitled to modify the above terms relating to remuneration, interest, etc. payable to the partners by executing a supplementary deed and any such deed when executed shall have effect, unless otherwise provided, from the first day of the accounting period in which such supplementary deed is executed and the same shall form part of this deed of partnership.

#### 8. WITHDRAWALS :

i) It is agreed that the partners shall be entitled to withdraw reasonable amounts from time to time during the year for their household requirements as also for Life Insurance and personal taxes etc. All such withdrawals shall be debited to the Current Accounts of the respective partners.

ii) It is further agreed that the salaries/remuneration determined as payable to working Partners, interest on capital of the partners and the share of profits/losses as the case may shall all be credited/debited to the Current Accounts of the partners.

iii) The balance in Current Accounts of the partners after the abovesaid adjustments shall be transferred to Capital and/or Loan Accounts of the partners at the beginning of the next following accounting year.

#### 9. SHARES :

The net profit of the partnership business as per the accounts maintained by the partnership after deduction of all expenses relating to the activities of the partnership including rent, salaries and other establishment expenses as well as interest and remuneration payable to the partners in accordance with this deed of partnership or any supplementary deed as may be executed by the partners shall be divided and distributed amongst the partners in the following proportion :

- |      |                                |       |
|------|--------------------------------|-------|
| i.   | SHRI HEMRAJANI JAWAHAR HARIRAM | 1/3rd |
| ii.  | SHRI CHOUDHARY KAMLESH ARJUN   | 1/3rd |
| iii. | SHRI DAVE KAILASH REWASHANKAR  | 1/3rd |

The loss, if any, as well as profit/loss of the capital nature suffered in any year shall also be apportioned in the above proportion.

Contd/-... Pg. No. 6

*Hemrajani*

*Kamlesh*

*Dave*



**10. BANK ACCOUNTS :**

One or more bank accounts may be opened with any bankers as may be agreed upon by the parties hereto for the purpose of partnership business and all such accounts shall be operated upon by any two out of three partners jointly in the firm name only.

**11. BOOKS AND RECORDS :**

The parties hereto shall keep proper books of accounts in respect of the partnership business at the principal place of business of the firm as mentioned above or at such place/s as the parties hereto may decide and they shall have access to the same and shall be empowered to take copies of or extracts therefrom. The parties hereto shall remain just, faithful and diligent to one another and render true and full accounts affecting or concerning the business of the firm.

**12. ACCOUNTING YEAR :**

Regular books of accounts and other relevant records and documents for the partnership business shall be maintained and the accounting year of the partnership shall be the year ending on 31st March every year.

**13. INDEMNITY :**

Each party shall indemnify the firm for any loss caused to it either by his wilful neglect or fraud while conducting the business of the firm in the said name.

**14. DUTIES :**

1) No party hereto without the consent of the others in writing shall :

- a) Release or compound any debts of the firm;
- b) Submit to arbitration any dispute relating to the business of the firm;
- c) Withdraw any suit or proceedings filed on behalf of the firm;
- d) Open bank account on behalf of the firm in his own name or jointly with any other person/s;
- e) Acquire property of any kind in his own name on behalf of the firm;
- f) Assign, mortgage, pledge or transfer any property of the firm or commit such act which may be injurious or harmful to the property of the firm;

*Neeraj Majani*

*Anurag*

*[Signature]*



g) Enter into any bond or give Bail, Security or Surety jointly with any person or do or knowingly cause or suffer to be done anything where by the Partnership property or any part thereof may be seized, attached, extended or taken into execution.

h) Assign, Mortgage or Charge his share in the Partnership or any part thereof or make any other person a Partner therein. Any continuing Partner committing any breach of any of the foregoing stipulations shall indemnify the Partnership from all losses and expenses on account thereof.

ii) Each partner shall:

a) Punctually pay his separate debts and indemnify the other Partners and the assets of the Partnership Business against the same and all the expenses on account thereof;

b) Forthwith deposit all monies, cheques and negotiable instruments received on account of the Partnership Business into the Partnership Business;

c) Be just and faithful to the other partners and give them full information and trustful explanations of all matters relating to the affairs of the Partnership Business;

d) Indemnify the Partnership and the other Partners for any loss caused as a result of direct consequences by his fraud, wilful neglect or misconduct;

#### 15. RETIREMENT/DISSOLUTION :

a) The duration of the Partnership shall be "AT WILL". In the case any Partner/s desires to retire from the Partnership, he shall be at liberty to do so by giving at least 30 days clear notice in writing to all the other partners. The Partners hereto may admit any new Partner/Partners upon such terms and conditions as may be mutually agreed upon by the existing Partners at the time of such admission.

b) The partnership shall not be dissolved by death, insolvency, retirement or lunacy of any of the partners.

Contd/-... Pg. No. 8

*Muneeb Majari*

*Amir*

*Abdullah*



- c) The partnership firm shall upon dissolution be wound up and liabilities shall be dealt with in accordance with the provisions of the Indian Partnership Act, 1932.
- d) Unless otherwise mutually agreed between the partners, no goodwill shall be paid to any partner in the event of his retirement from the partnership. Nor shall any goodwill be payable either to his heirs of the deceased partner/s or to the executors of the insolvent partner. However, if any sum is realised on account of goodwill on sale of the partnership business, all the partners shall be entitled to the share in the goodwill of the partnership firm in their profit & loss sharing ratio.
- e) Notwithstanding anything stated or provided herein, the parties shall have full powers and discretion to modify, alter or vary the terms and conditions of this Partnership Deed in any manner whatsoever they think fit, by unanimous consent of all the Parties which shall be reduced to writing and signed by all existing Partners and thereupon the said writing shall become appenage and part of this DEED.

#### 16. ARBITRATION:

If during the continuance of the partnership or at any time during afterwards any difference shall arise between the said partners or any one of them and the legal representative/s of any of the partners in regard to the construction of any of the articles herein contained or any division, act or thing relating to the said partnership or the affairs thereof, such differences shall forthwith be referred to one or more arbitrators as may be appointed by the partners as may be mutually agreed upon by them and every reference shall be deemed to be an arbitration in accordance with and subject to the provisions of The Arbitration & conciliation Act, 1996 or any other statutory modifications or re-enactment thereof for the time being in force.

#### 17. FORCE MAJEURE :

All the parties hereto shall make sincere attempts to fulfil their obligations and commitments under this agreement. However they shall not be held liable for any failure due to Force Majeure or any other act of GOD.

*Munpema*

*Amish*

*[Signature]*



IN WITNESS WHEREOF the parties hereto have hereinto set and subscribed their respective hand and seals to this Deed, the day and the year first hereinabove mentioned.

SIGNED, SEALED AND DELIVERED  
by the withinnamed  
"PARTY OF THE FIRST PART"  
SHRI HEMRAJANI JAWAHAR HARIRAM  
in the presence of.....

1. Parag N. Sheth P.N. Sheth
2. Deepak M. Amin D.M. Amin

SIGNED, SEALED AND DELIVERED  
by the withinnamed  
"PARTY OF THE SECOND PART"  
SHRI CHOUDHARY KAMLESH ARJUN  
in the presence of.....

1. Parag N. Sheth P.N. Sheth
2. Deepak M. Amin D.M. Amin

SIGNED, SEALED AND DELIVERED  
by the withinnamed  
"PARTY OF THE THIRD PART"  
SHRI DAVE KAILASH REWASHANKAR  
in the presence of.....

1. Parag N. Sheth P.N. Sheth
2. Deepak M. Amin D.M. Amin

*Hemrajani*

*Kamlesh*

*Dave*

ATTESTED

*Vasant B. More*  
1/4/04

Vasant B. More  
NOTARY GR. BOMBAY (M. S.)  
1, Vijaya Sadan, Plock No. 6,  
1st Floor, Road No. 25, 3rd (W),  
BOMBAY-400 022

01 APR 2004

